

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

-----X
LLOYD STYLE,

Plaintiff,

-against-

SUMMONS

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD OFFICER
MICHAEL PROCIDA (Tax Reg. # 961124), and NYPD
OFFICERS JOHN and JANE DOE #'s 1-10 (names and
numbers are unknown at this time), and Other Unidentified
members of the New York City Police Department,

Plaintiff Designates
Queens County
as the place of trial.

Defendants.
-----X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 17, 2021

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER MICHAEL PROCIDA (Tax Registration #961124), 113th Precinct, 167-02 Baisley Boulevard, Jamaica, NY, 11434-2511

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

-----X
LLOYD STYLE,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
MICHAEL PROCIDA (Tax Reg. #961124), and NYPD
OFFICERS JOHN and JANE DOE #'s 1-10 (names
and numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Defendants.

-----X
Plaintiff **Lloyd Style**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected him to, among other things, false arrest, unlawful search and seizure, federal and state law malicious prosecution, negligence, gross negligence, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Lloyd Style is a resident of the State of New York, Kings County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER MICHAEL PROCIDA, assigned Tax Registration # 961124, employed with the 113th Command, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER MICHAEL PROCIDA (Tax Reg. # 961124) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-8 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police

Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of the Plaintiff on May 18, 2021.

STATEMENT OF FACTS

15. On July 10, 2019, at approximately 4:40 a.m. in the area of Merrick Boulevard and 127th Avenue, Queens, New York, several police officers from the 113th Precinct, and other unknown police commands, including upon information and belief, defendant NYPD Officer Michael Procida (Tax Reg. # 961124), and P.O. John and Jane Does #1-10, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.
16. On July 10, 2019 at approximately 4:40 a.m., Plaintiff was operating a motor vehicle in a safe and legal manner in the area of Merrick Boulevard and 127th Avenue, when he was illegally stopped,

handcuffed, frisked, and placed in an NYPD patrol car by defendant NYPD Officer Procida and/or NYPD Officers Jane and/or John Doe #'s 1-10.

17. At the time of his initial detention and arrest, Plaintiff had committed no traffic infractions, lane violation, moving violations, or speeding violations to justify Plaintiff's stop or subsequent arrest. Plaintiff never ignored or evaded any police signals. Rather, upon information and belief, Plaintiff voluntarily stopped his vehicle twice. Plaintiff first stopped several blocks from the location of his arrest because defendant officers pulled alongside Plaintiff. Although defendant officers had not signaled him to pull over, he believed they wished to speak with him. When they declined to do so, he proceeded to operate his vehicle again in a lawful manner. Plaintiff voluntarily stopped again shortly thereafter and was subjected to a false arrest.
18. Upon information and belief, defendant officers did not stop and arrest Plaintiff for any legitimate purpose, but rather in retaliation for an earlier verbal interaction between Plaintiff, Plaintiff's friends, and defendant officers. This interaction occurred prior to Plaintiff entering his vehicle. Plaintiff committed no crime or violation during this verbal interaction that would justify Plaintiff's subsequent arrest.
19. Once the defendant officers approached Plaintiff, he was not free to leave.
20. Upon information and belief, defendant officers, including NYPD Officer Procida, approached Plaintiff's vehicle with their guns drawn. This placed Plaintiff in fear of his life. Approaching the vehicles with guns drawn was not justified because Plaintiff had not acted in any manner that would warrant such behavior by defendant officers.
21. Plaintiff was detained at the 112th or 113th Precinct for approximately seven hours.
22. Plaintiff was later transported to Queens Central Booking, where he remained for an additional twelve hours.

23. While plaintiff was incarcerated at the 112th or 113th precinct and Queens Central Booking, defendants falsely and maliciously told the Queens County District Attorney's Office that Plaintiff had committed numerous crimes, including Obstructing Governmental Administration in the Second Degree, Unlawful Fleeing a Police Officer in a Motor Vehicle in the Third Degree, Operating a Motor Vehicle While Under the Influence of Alcohol, and Reckless Driving. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.
24. Based on the defendant's false statements, the Queens County District Attorney's office chose to prosecute Plaintiff under docket CR-021809-19QN.
25. During his confinement at the 112th or 113th Precinct and Queens Central Booking, Plaintiff was subjected to depraved, filthy and inhumane conditions.
26. Plaintiff was released on his own recognizance at his arraignment, and subsequently attended approximately six court appearances.
27. On February 23, 2021, the above-stated malicious prosecution terminated in plaintiff's favor when all charges against him was dismissed and sealed in their entirety.
28. Plaintiff was suffered emotional distress due to the uncertainty of an ongoing criminal case against him for false and malicious charges for more than one year and seven months. He also suffered severe fear and angst as a result of the circumstances of his arrest.
29. As a direct result of Plaintiff's false arrest and malicious prosecution:
 - a. Plaintiff was terminated from his position with a local transportation company that participated in the Access-A-Ride program, where he made \$28 and hour.
 - b. Plaintiff was suspended for a week from his other source of employment, as a security guard for High Level Development. In that position, Plaintiff made \$15 hour.

- c. Plaintiff missed additional work time because, as a result of his driver's license suspension resulting from the arrest, he was unable to commute a work placement in the Bronx.
- d. Plaintiff's car was impounded by defendant New York Police Department for a period of time, and Plaintiff was forced to pay \$500 to retrieve it.
- e. Plaintiff missed time at work to retrieve the car from its impoundment.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

- 30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 29 as if fully set forth herein.
- 31. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
- 32. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
- 33. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

MALICIOUS PROSECUTION

- 34. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.

35. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
36. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiffs obtained a favorable termination on the fabricated charges.
37. Defendants commenced and continued a criminal proceeding against plaintiff.
38. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
39. The prosecution and criminal proceedings terminated favorably to plaintiff on February 23, 2021.
40. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
41. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.
43. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION**FAILURE TO INTERVENE**

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.
45. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, including depriving him of timely medical care and subjecting him to unlawful search and seizure, assault, and battery.
46. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
47. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
48. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
49. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION**NEGLIGENCE**

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.
51. Defendants owed a duty of care to plaintiff.
52. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.

53. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
54. All of the foregoing occurred without any fault by plaintiff.
55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.
57. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
58. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
59. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS**FIRST CLAIM FOR RELIEF****DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
61. All of the aforementioned acts of defendant PROCIDA and NYPD OFFICERS JOHN and JANE DOE” #1-10, their agents, servants, and employees, were carried out under the color of state law.
62. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
63. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
64. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
65. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF**FALSE ARREST UNDER 42 U.S.C. § 1983**

66. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

67. As a result of the aforesaid conduct by defendant PROCIDA, and POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants PROCIDA, and POLICE OFFICERS “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
68. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
70. Plaintiff was searched by defendants PROCIDA, and POLICE OFFICERS “JOHN DOE” #1-10 without an individualized reasonable suspicion that plaintiff had committed any crime or in possession of any illicit contraband, proceeds of a robbery, illegal weapons, or any other illegal substances.
71. As a result of the aforesaid conduct by defendants PROCIDA, and POLICE OFFICERS “JOHN DOE” #1-10 plaintiff’s persons was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. Plaintiff repeatedly told defendants that he was not consenting to a search at the time of his arrest.

72. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

73. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
74. Defendants PROCIDA, and POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against the plaintiff, alleging that he committed several robberies when none actually occurred.
75. Defendants PROCIDA, and POLICE OFFICERS “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff had committed two robberies on the day of his arrest, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had any connection with the robberies, and, in fact, did not have probable cause to arrest him for said offenses.
76. Defendants PROCIDA, and POLICE OFFICERS “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
77. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants PROCIDA, and POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

78. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

79. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
80. Defendants PROCIDA, and POLICE OFFICERS "JOHN DOE" #1-10 had an affirmative duty to intercede when plaintiff's constitutional rights were being violated in defendants' presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff's arrest throughout all phases of the criminal proceedings.
81. Defendants PROCIDA, and POLICE OFFICERS "JOHN DOE" #1-10 further violated plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
82. As a result of the defendants' failure to intercede when plaintiff's constitutional rights were being violated in defendants' presence, plaintiff sustained, *inter alia*, emotional injuries, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

83. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

84. Defendants PROCIDA, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 misrepresented and falsified evidence before the Kings County District Attorney, including false allegations that Plaintiff committed any illegal actions against any other individual.
85. Defendants PROCIDA, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 did not make a complete and full statement of facts to the District Attorney.
86. Defendants PROCIDA, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 withheld exculpatory evidence from the District Attorney.
87. Defendants PROCIDA, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
88. Defendants PROCIDA, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.
89. Defendants PROCIDA, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 acted with malice in initiating criminal proceedings against plaintiff.
90. Defendants PROCIDA, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
91. Defendants PROCIDA, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.
92. Defendants MOOD, BURKE, PERSSON, KOO, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.
93. Defendants PROCIDA, and/or POLICE OFFICERS “JOHN DOE” #1-8 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

94. Specifically, defendants PROCIDA, and/or POLICE OFFICERS “JOHN DOE” #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.
95. Notwithstanding the perjurious and fraudulent conduct of defendants PROCIDA, and/or POLICE OFFICERS “JOHN DOE” #1-10, the criminal proceedings were terminated in plaintiff’s favor on July 9, 2019.
96. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

97. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
98. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
99. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer’s arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,

- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
- E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

- 100. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.
- 101. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.
- 102. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.
- 103. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.
- 104. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.
- 105. The acts complained of deprived the plaintiff of his right:

- F. Not to be deprived of liberty without due process of law;
- G. To be free from seizure and arrest not based upon probable cause;
- H. Not to have summary punishment imposed upon them; and
- I. To receive equal protection under the law.

WHEREFORE, LLOYD STYLE, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
August 17, 2021

Respectfully submitted:

By: /s/ Sydney O'Hagan
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New York, New York 10005
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TO:
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER MICHAEL PROCIDA (Tax Registration #961124), 113th Precinct, 167-02 Baisley Boulevard, Jamaica, NY, 11434-2511

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
August 17, 2021

Sydney O'Hagan /s/
Sydney O'Hagan, Esq.